

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
MICHAEL ROTONDO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
EDWARD MONTOYA, Shield No. 14418, SERGEANT
CARLOS MEDINA, and POLICE OFFICERS JOHN
DOES #1-10 (names and number of whom are unknown at
present), and other unidentified members of the New York
City Police Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 11, 2014

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER EDWARD MONTOYA, Shield No. 14418, 2207 Amsterdam Ave,
New York, NY 10032
SERGEANT CARLOS MEDINA, 2207 Amsterdam Ave, New York, NY 10032

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, MICHAEL ROTONDO, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On December 17, 2012, at approximately 9:40, plaintiff, Michael Rotondo, was subjected to a false arrest, false imprisonment, assault, battery, and excessive force which by the defendant New York City police officers. Thereafter, plaintiff was maliciously prosecuted by the defendant police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants falsely arrested, imprisoned, maliciously prosecuted, assaulted, battered, and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff MICHAEL ROTONDO is a resident of the State of New York.

3. POLICE OFFICER EDWARD MONTTOYA, Shield No. 14418, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER EDWARD MONTTOYA, Shield No. 14418, is and was at all times relevant herein, assigned to the 33rd precinct.

5. POLICE OFFICER EDWARD MONTTOYA, Shield No. 14418, is being sued in his individual and official capacities.

6. SERGEANT CARLOS MEDINA, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT CARLOS MEDINA, is and was at all times relevant herein, assigned to the 33rd precinct.

8. SERGEANT CARLOS MEDINA, is being sued in his individual and official capacities

9. New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

16. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

17. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

18. THE CITY OF NEW YORK held a 50-h hearing on December 4, 2013.

STATEMENT OF FACTS

19. Plaintiff is a systems engineer at Deutsche Bank and has never been convicted of a crime in his life.

20. On December 17, 2012, at approximately 9:40 a.m., plaintiff was lawfully inside of Columbia University Medical Center located at 1051 Riverside Drive, NY, NY.

21. Upon arrival at Columbia University Medical Center, as per the building's protocol, plaintiff rang the buzzer at the front door and was buzzed inside.

22. Upon entering the building, plaintiff walked into the waiting area and lawfully sat down to wait for his scheduled appointment.

23. Several minutes later, a security guard aggressively approached plaintiff and screamed at him that he had to sign in at the security desk.

24. Plaintiff complied with the security guard's request, and walked over to the security desk and signed into the visitor's logbook.

25. Additionally, plaintiff handed the security guard his identification and the security guard checked plaintiff's identification and handed it back to plaintiff.

26. Plaintiff then proceeded to sit back down in the waiting area until he was called for his scheduled appointment.

27. Without provocation or legal justification, the security guard aggressively approached plaintiff again and chest bumped plaintiff and pushed plaintiff backwards.

28. The security guard then grabbed plaintiff's arm and refused to let go.

29. Thereafter, additional security guards approached plaintiff, threw him down to the ground and handcuffed him.

30. Plaintiff told the security guards to call 911 as they had just assaulted him.

31. Several minutes later the defendant police officers arrived at the aforementioned location.

32. Plaintiff explained to the defendant police officers that he was just assaulted without justification by the security guards.

33. The defendant police officers told plaintiff that they are going to review the video surveillance to see what exactly occurred.

34. After reviewing the video surveillance footage, the defendant police officers told plaintiff that it was clear that plaintiff was not the aggressor, and agreed with plaintiff that he was in fact was assaulted without justification by the security guards.

35. Further, the defendant police officers knew that the security guards were lying and that plaintiff had not committed any crime whatsoever.

36. Nevertheless, the defendant police officers unlawfully arrested plaintiff without any legal justification or probable cause for crimes they knew he did not commit.

37. At no time did plaintiff resist being arrested in any way.

38. Nevertheless, the defendant police officers aggressively grabbed plaintiff's arms and shoved him out of the building.

39. Thereafter, plaintiff was transported to the 33rd precinct.

40. Upon arrival at the 33rd precinct, plaintiff was fingerprinted, photographed, and placed in a holding cell.

41. While at the precinct, the defendant police officers falsely communicated to the Manhattan District Attorney's Office that plaintiff had committed a crime despite clear video evidence indicating the contrary.

42. Based upon the false, incomplete, and/or misleading information provided to the District Attorney's Office by the defendant police officers, a prosecution against plaintiff was initiated.

43. Plaintiff was unlawfully charged with Obstructing Governmental Administration and Harassment in the Second Degree.

44. After several hours at the 33rd precinct, plaintiff was transported to Manhattan Central Booking.

45. After approximately 24 hours in police custody, plaintiff was arraigned and was released on his own recognizance.

46. Thereafter, plaintiff had to return to Court on approximately 6 occasions before all charges against plaintiff were dismissed on May 13, 2013.

47. At no point during their encounter with plaintiff did the defendant police officers have probable cause or legal justification to arrest plaintiff for any crime.

48. Some of the defendant police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the false imprisonment, false arrest, assault, battery and use of excessive force against plaintiff.

49. The false arrest, false imprisonment, malicious prosecution, assault and battery and used of excessive force against plaintiff by the individually named defendant police officers caused him to sustain severe physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, falsely arrested, imprisoned, and maliciously prosecuted plaintiff without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FOURTH CAUSE OF ACTION

Negligence

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. Defendants owed a duty of care to plaintiff.

60. Defendants breached that duty of care by falsely arresting, falsely imprisoning, maliciously prosecuted, assaulting, battering, and using excessive force against plaintiff.

61. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

62. All of the foregoing occurred without any fault or provocation by plaintiff.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

65. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Michael Rotondo. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

66. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Failure to Intervene

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

70. Defendants failed to intervene to prevent the unlawful conduct described herein.

71. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Assault

74. Plaintiff repeats and realleges paragraphs 1 through 73 as if fully set forth herein.

75. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Battery

78. Plaintiff repeats and realleges paragraphs 1 through 77 as if fully set forth herein.

79. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

80. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

81. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

82. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. The use of excessive force by defendants in grabbing plaintiff's arm and holding him down in the ground was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

84. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

TENTH CAUSE OF ACTION

Malicious Prosecution

85. Plaintiff repeats and realleges paragraphs 1 through 84 as if fully set forth herein.

86. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution, the laws of the State of New York and New York State common law.

87. Defendants commenced and continued a criminal proceeding against plaintiff.

88. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

89. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

90. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

93. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Michael Rotondo demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 11, 2014

By: _____

STUART E. JACOBS
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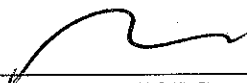
TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER EDWARD MONTTOYA, Shield No. 14418, 2207 Amsterdam Ave,
New York, NY 10032
SERGEANT CARLOS MEDINA, 2207 Amsterdam Ave, New York, NY 10032

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
August 11, 2014



STUART E. JACOBS